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Case Number: 24NNCV05136 Hearing Date: August 27, 2026 Dept: T

John Doe vs Delphi Schools, Inc., et al.

Motion to Compel Further Responses to Request for Production of Documents, Set Three

Moving Party: Plaintiff John Doe

Responding Party: Defendant Delphi Schools, Inc.

Tentative Ruling: Grant in part, deny in part

BACKGROUND

On August 11, 2026, Plaintiff John Doe ("Plaintiff") filed a first amended complaint ("FAC") against Defendants Delphi Schools, Inc. ("Defendant" or "Delphi Schools"), Applied Educational Concepts, Inc. dba Delphi Academy of Los Angeles ("Delphi Academy"), Randolph Clifford Jackson ("Jackson"), and Roes 1 through 25, alleging the following causes of action: (1) sexual assault of a minor; (2) negligent supervision and/or retention of Jackson; and (3) negligent supervision of Plaintiff; and (4) ratification.

On April 14, 2026, Plaintiff served Defendant with a third set of requests for production.

On May 14, 2026, Defendant served its responses to the production requests, as well as a privilege log.

On July 6, 2026, following meet and confer efforts by counsel for the parties, Defendant served a supplemental privilege log.

Plaintiff now moves to compel Defendant's production of documents identified on this log and withheld on the basis of privilege that are responsive to Request for Production numbers 47, 48, 50, 51, 52 53, 54, and 55.

Defendant opposes, and Plaintiff replies.

MOVING PARTY POSITION

Plaintiff initially argues that Defendant's privilege logs are inadequate because the logs do not provide sufficient information to determine which documents have been withheld in response to each request.

Plaintiff also argues that logs fail to provide sufficient information to test the application of the attorney-client privilege as to each identified communication and that, to the extent these emails involved a public relations consultant or did not involve an attorney, the privilege does not apply.

Plaintiff further argues that he has made the required prima facie showing that the crime-fraud exception destroys any claimed privilege by Defendant over communications concerning its failure to make mandated reports for suspected childhood sexual abuse.

OPPOSITION

Defendant contends that it has clearly established the applicability of the attorney-client privilege to the challenged communications as a complete bar to their production as each of these communications involved retained counsel for Defendant or the public relations consultant and public relations firm who was hired by counsel, on behalf of Defendant, to provide advice in media strategy and legal communication.

Defendant also contends that the presence of the public relations consultant does not constitute a waiver of confidentiality under the circumstances, as Defendant maintained a reasonable expectation that these communications would remain confidential and were made in furtherance of counsel's representation given counsel's involvement in retaining the public relation services for Defendant. The omission of counsel from certain communications does not subject these communications to disclosure. Plaintiff also misinterprets the privilege log when stating that certain emails pertain to communications with local church and school communities and any of the communications made in the preparation of materials that were ultimately distributed to the public remain privileged.

Defendant further contends that the Plaintiff has not made the requisite showing for the application of the crime-fraud exception because Plaintiff has not shown that Defendant retained counsel for the purpose of committing a crime or fraud, or that counsel advised Defendant to conceal abuse, violate mandatory reporting obligations, obstruct any investigation, or engage in any unlawful conduct.

Defendant finally contends that Plaintiff's request for categorical disclosure is improper.

REPLY

Plaintiff responds that counsel's retention of the public relations firm on Defendant's behalf does not address the question of whether the public relations consultant's participation in these communications was reasonably necessary to accomplish the purpose for which counsel was retained by Defendant.

Plaintiff further responds that Defendant's claim that Plaintiff has not identified a crime ignores the evidence that Plaintiff submitted in making a prima facie showing of the crime-fraud exception's application as Defendant's employee is shown to have failed to make a mandatory report of suspected childhood sexual abuse.

ANALYSIS

I. Legal Standard

Code of Civil Procedure section 2031.310(a) provides that “on receipt of a response to a request for production of documents, the demanding party may move for an order compelling further responses if: ۞۞۞

(1) A statement of compliance with the demand is incomplete. ۞۞۞

(2) A representation of inability to comply is inadequate, incomplete, or evasive. ۞۞۞

(3) An objection in the response is without merit or too general.” ۞۞۞۞ ۞۞

“The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc. § 2031.310, subd. (b)(1).) “The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2031.310, subd. (b)(2).)

۞ “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” ۞ (Code Civ. Proc. § 2031.310, subd. (c).) ۞۞۞۞۞

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.310, subd. (h).)

II. Discussion

At the outset, the Court notes that Defendant asserted the attorney-client privilege as the basis for withholding all of the Bates-numbered documents identified in its supplemental privilege log, bearing Bates-numbers 1 through 97. (Allard Decl. ¶ 8, Exh. 7 (“Privilege Log”).) Of these documents, the Court further notes that the attorney work product doctrine is raised as an additional basis for withholding the following documents: 1–2, 64–66, 72–73, and 79–97. (Ibid.)

Moreover, based on Plaintiff’s annotated responses to the supplemental privilege log, it appears that Plaintiff concedes that the following documents are privileged based on Defendant’s representations in the log regarding their contents: 1–2, 4, 16–18, 51, 57–63, 74, and 85–92. In addition, Plaintiff appears to concede that portions of the specified emails comprising each of the following documents are also privileged based on the representations: 5–6, 13–15, 23–24, 35–36, 38–43, and 46. Plaintiff otherwise appears to contest the attorney-client privilege’s application to the remaining Bates-numbered documents, in part or whole, for the following reasons summarized from his responses; (1) the communications did not substantively facilitate the attorney-client relationship between Defendant and its counsel or were disclosed to third parties not reasonably necessary to accomplishing Defendant’s purpose in consulting its counsel (see Privilege Log, numbers 3, 5–6, 13–15, 19–34, 37–45, 47–50, 54–56, 64–71, 75–84, and 93–94); (2) its counsel was not included in the communications, thereby rendering the privilege inapplicable (see id., numbers 10–12, 19–22, 35–36, 46, 72–73, and 95–97); and (3) the evidenced application of the crime-fraud exception to the communications based on Defendant’s representations destroys the privilege (see id., numbers 7–9, 52–53.)

Accordingly, the Court shall address each of these reasons in turn to determine whether the privilege applies to the contested documents.

A. Attorney-Client Privilege

"Subject to Section 912 and except as otherwise provided in this article, client, whether or not a party, has a privilege to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer ..." (Evid. Code § 954.) A "confidential communication between client and lawyer" is defined as "information transmitted between a client and his or her lawyer in the course of that relationship and in confidence by a means which, so far as the client is aware, discloses the information to no third persons other than those who are present to further the interest of the client in the consultation or those to whom disclosure is reasonably necessary for the transmission of the information or the accomplishment of the purpose for which the lawyer is consulted, and includes a legal opinion formed and the advice given by the lawyer in the course of that relationship." (Evid. Code § 952.) Under Evidence Code section 912, a "disclosure in confidence of a communication that is protected by a privilege provided by Section 954 (lawyer-client privilege), ... when disclosure is reasonably necessary for the accomplishment of the purpose for which the lawyer[] ... was consulted, is not a waiver of the privilege." (Evid. Code § 952, subd. (d).)

"The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise, i.e., a communication made in the course of an attorney-client relationship." (Costco Wholesale Corp. v. Superior Court (2009) 47 Cal.4th 725, 733.) "Once that party establishes facts necessary to support a prima facie claim of privilege, the communication is presumed to have been made in confidence and the opponent of the claim of privilege has the burden of proof to establish the communication was not confidential or that the privilege does not for other reasons apply. [Citations.]" (Ibid.) However, "[t]he involvement of a third party changes the burden of proof in litigating attorney-client privilege issues." (Behunin v. Superior Court (2017) 9 Cal.App.5th 833, 844.) "Where a third party is present, no presumption of confidentiality obtains, and the usual allocation of burden of proof, resting with the proponent of the privilege, applies in determining whether confidentiality was preserved under § 952." (Id. [quoting Sony Computer Entertainment America, Inc. v. Great American Ins. Co. (N.D.Cal.2005) 229 F.R.D. 632, 634]; see, also, Raytheon Co. v. Superior Court (1989) 208 Cal.App.3d 683, 688 ["[T]he presence of third parties does not destroy confidentiality if the disclosure was reasonably necessary to accomplish the client's purpose in consulting counsel."].)

i. Third Parties

"Applications of Evidence Code sections 912 and 952 can be divided into two categories. The first is where the third party has no interest of his or her own in the matter, but a litigant must disclose a confidential communication to the third party because the third party is an agent or assistant who will help to advance the litigant's interests." (Citizens for Ceres v. Superior Court (2013) 217 Cal.App.4th 889, 915; see, also, Zurich American Ins. Co. v. Superior Court (2007) 155 Cal.App.4th 1485, 1496 ["While involvement of an unnecessary third person in attorney-client communications destroys confidentiality, involvement of third persons to whom disclosure is reasonably necessary to further the purpose of the legal consultation preserves confidentiality of communication."] [emphasis in original and internal quotes and citations omitted].)

In moving to compel production of the withheld, responsive documents, Plaintiff argues that any of the emails involving public relations consultant Maureen Maguire ("Maguire") are not privileged because Maguire's presence was not reasonably necessary to accomplish the purpose for which Defendant's counsel Susan Schorr ("Schorr") was consulted.

In opposition, Defendant contends that Schorr's retention of Maguire and inclusion of her in these emails was reasonably necessary to carry out the attorney-client relationship and that the privilege log clearly demonstrates that Defendant's communications with Maguire were for the purpose of seeking and providing legal communications advice, which were formulated with and through Delphi's retained counsel Susan Schorr.

As the contested communications involve the presence of a third party, Defendant bears the initial burden of showing that the communications between Defendant and Maguire were reasonably necessary for the accomplishment of the purpose for which Defendant retained Schorr. (See Behunin, supra, 9 Cal.App.5th at p. 850.) In Behunin, the Court of Appeal analyzed the issue of whether the attorney-client privilege extended to a public relations consultant who was hired by retained counsel for the plaintiff to create a social media campaign to induce the defendants to settle the action. (Id. at pp. 837–838.) According to the plaintiff in Behunin, his counsel entered into a contract with the consultant on the plaintiff's behalf, and the communications amongst the three of them were intended to be protected by the attorney-client privilege. (Id. at p. 838.) Under these factual circumstances, the Court of Appeal made clear that "[t]here is no 'public relations privilege' in California" and went on to explain that the issue of "whether communications among a client, his or her attorney, and a public relations

consultant are protected by the attorney-client privilege depends on whether the communications were confidential and whether disclosing them to the consultant was reasonably necessary to accomplish the purpose for which the client consulted the attorney.” (Id. at p. 484.)

As there were “no California cases analyzing whether a communication disclosed to a public relations consultant is a confidential communication between a client and a lawyer under section 952 or whether such a disclosure waives the attorney-client privilege under section 912,” the Court of Appeal examined federal decisions that addressed the issue by applying state law. (Behunin, *supra*, 9 Cal.App.5th at p. 846.) Of particular note, the Court of Appeal examined *Egiazaryan v. Zalmayev* (S.D.N.Y. 2013) 290 F.R.D. 421, a federal case applying New York law in which the district court found that the submitted declarations and documents showing the role of the public relations consultant in developing legal strategy and gave advice in determining the benefits of taking legal action, among other things, was insufficient to establish the necessity of the consultant’s involvement. (Id. at p. 848.) The Court of Appeal noted that, even with all the submitted evidence, the district court in *Egiazaryan* ultimately concluded “that mere fact that [the public relations consultant] was inserted into the legal decisionmaking process does nothing to explain why [the consultant’s] involvement was necessary to [the plaintiff’s] obtaining legal advice from his actual attorneys.” (Id. at pp. 848, alterations in original [quoting *Egiazaryan*, *supra*, 290 F.R.D. at p. 431].) Applying this framework to the factual circumstances in *Behunin*, the Court of Appeal reasoned that the plaintiff in *Behunin* failed to provide sufficient evidence showing that his and his retained counsel’s communications with his counsel were reasonably necessary to accomplish the purpose for which his counsel was retained. (Id. at p. 450.)

Likewise, in the instant action, Defendant has failed to make any evidentiary showing and, instead, appears to rely wholly on the representations made in its privilege log as the basis for its assertion of the attorney-client privilege to all the communications made between it, Schorr, and Maguire. Defendant provided no evidence establishing why it retained Schorr and the purpose of this attorney-client relationship. (See generally *Nguyen Decl.*) Nor has Defendant provided any evidence showing why any of its communications or Schorr’s communications with Maguire were reasonably necessary to develop a litigation strategy (*ibid.*); nor do the representations offered by Defendant in the Privilege Log supply the Court with sufficient information to find that these communications were reasonably necessary in accomplishing the purpose for which Schorr was retained. (See generally *Privilege Log.*) Rather, the log appears to suggest that the purpose of these communications was to prepare and develop a media strategy in response to Jackson’s alleged misconduct, including the dissemination of information to parents and members of the public through prepared letters and statements. (*Ibid.*) Furthermore, to the extent that Schorr was entirely absent from any of the emails between Maguire and Defendant based on the Privilege Log, the Court finds no basis for applying the attorney-client privilege to these emails. Accordingly, given the lack of sufficient evidence, the Court finds that Defendant failed to carry its burden of showing that the attorney-client privilege applies to these communications. Thus, the motion to compel is granted as to contested email communications that Defendant represents are contained in Bates-numbered documents 3, 5–6, 10–15, 19–50, 54–56, 64–73, 75–84, and 93–97.

ii. Crime-Fraud Exception

“There is no privilege under this article if the services of the lawyer were sought or obtained to enable or aid anyone to commit or plan to commit a crime or a fraud.” (Evid. Code § 956, subd. (a).) “To invoke the Evidence Code section 956 exception to the attorney-client privilege, the proponent must make a prima facie showing that the services of the lawyer ‘were sought or obtained’ to enable or to aid anyone to commit or plan to commit a crime or fraud. [Citation.]” (*State Farm Fire & Casualty Co. v. Superior Court* (1997) 54 Cal.App.4th 625, 643 [quoting *BP Alaska Exploration, Inc. v. Superior Court*, *supra*, 199 Cal.App.3d at p. 1262].) In analyzing whether there exists a reasonable relationship between the crime or fraud and attorney-client communication, “it is the intent of the client upon which attention must be focused and not that of the lawyers.” (Id. at p. 645.) Applying this framework, the Court finds that Plaintiff has failed to make a prima facie showing that the emails from Defendant’s employed Head of School, Karen Dale, to Susan Schorr that concerned information provided by a parent regarding Jackson were intended to enable or facilitate a crime, including the asserted failure to make a mandatory report of any suspected abuse by Jackson. (See *Allard Decl.*, Exhs. 9–13.) However, as Plaintiff failed to make a prima facie showing of the crime-fraud exception’s application, the motion to compel the production of the email communications contained in Bates-numbered documents 7–9 and 52–53 is denied.

Therefore, the motion is granted as to Bates-numbered documents 3, 5–6, 10–15, 19–50, 52–56, 64–73, 75–84, and 93–97, and is otherwise denied.

RULING

Plaintiff John Doe's Motion to Compel Defendant Delphi Schools, Inc.'s Further Responses to her Request for Production of Documents, Set Three is GRANTED IN PART as to the Bates-numbered documents 3, 5–6, 10–15, 19–50, 54–56, 64–73, 75–84, and 93–97, identified in Exhibit "7" to the Allard Declaration that are responsive to Requests for Production numbers 47, 48, 50, 51, 52, 53, 54, and 55, and is otherwise DENIED. Said further responses are due within 15 days of this order.